PURCHASE ORDER

PO NO: NTSIPL/PO/26-27/C57 **DATE:** 27-05-2026

Vendor Name & Address:

M/s. Nihva Technologies Private Limited.
FIRST FLOOR ABOVE RENAULT SHOWROOM,
PLOT NO-187, G-BLOCK, THERMAX CHOWK MIDC,
CHINCHWAD, Pune, Maharashtra, 411019.
Mobile: +91 8551093333/ 85306423333
Person: Mr. Vijay Tharak / Mrs. Ashwini Jadhav
Email: Supportautomation@nihva.com , sagar.parkale@nihva.com, bd@nihva.com, sales@nihva.com
GST: 27AAECN0437H1ZM

We are pleased to provide you with our purchase order for below mentioned items.

Subject: Automatic Retractable roof for Transformer Application.

Reference: Quotation No.: RR_25.26.0149R6 Date: 26-05-2026

No.	Description	Width X Height	Qty	Unit Price	Amount
1	**Area:** CCA (PT) NIHVA Make - Automatic Retractable Roof Enclosure C shape *(effective collapsible roof 14.4m) + 2 nos Bi parting sliding doors	(W)6.5m X (L)14.4m X (H)6.5m one side 5 panel (4 move, 1 fix - One side opening) Opening - 75%	2	5000000	1,00,00,000.00
2	**Area:** Core Assembly Shop (PT) NIHVA Make Automatic C Shape Roof enclosure	(W)14.2m X (L)12.7m X3.5m (H) 5 panel movable & 1 panel fix - one side opening) Opening- 83%	1	7000000	70,00,000.00
3	**Area:** VWM & HWM Clean Room (PT) NIHVA Make Automatic Retractable Flat Type Roof	RR- (W)5m X (L)5m 1 panel (One side opening) TOTAL 16 nos Opening - 100% 2 Track assembly (15nos movable + 1no Fixed)	15	1535000	2,30,25,000.00
4	**Area:** PT Shop – SPA (PT) NIHVA Make Automatic Retractable Flat Type Roof (Same as VWM & HWM Clean Room (PT))	(W)5mX (L)5m 1 panel - one side opening Opening - 100%	3	1170000	35,10,000.00
5	**Area:** Collapsible Roof CCA (MPT) NIHVA Make Automatic Retractable Flat Type Roof	(W)3m X (L)4m 1 panel (One side opening) Opening - 100%	9	725000	65,25,000.00
6	Structural Base design to mount above Automatic Retractable Roofs	--	5	0	--
				Sub Total	**5,00,60,000.00**
				GST 18%	90,10,800.00
				Grand Total	**5,90,70,800.00**

Rupees In words: Five Crores Ninety Lakhs Seventy Thousand and Eight Hundred Rupees Only

Terms and Conditions:

- GST : 18% as added Above.
- Packing & Forwarding : Included.
- Delivery Period for supply, Erection & Commissioning:

No.	Item	Qty	Delivery Date
1	Structural Base design to mount above Automatic Retractable Roofs: VWM & HWM Clean Room (PT) – 1, SPA -1 (CCA (PT)-1, CCA (MPT) -1,	4	03-06-20026
2	Structural Base design to mount above Automatic Retractable Roofs: (CCA (PT)-1, Core Assembly Shop (PT)-1,	2	10-06-20026
3	**Area:** VWM & HWM Clean Room (PT) NIHVA Make Automatic Retractable Flat Type Roof	15	30-07-20026
4	**Area:** PT Shop – SPA (PT) NIHVA Make Automatic Retractable Flat Type Roof	3	10-08-20026
5	**Area:** CCA (PT) NIHVA Make - Automatic Retractable Roof Enclosure C shape *(effective collapsible roof 14.4m) + 2 nos Bi parting sliding doors	1	30-07-20026
6	**Area:** Core Assembly Shop (PT) NIHVA Make Automatic C Shape Roof enclosure	1	31-08-20026
7	**Area:** Collapsible Roof CCA (MPT) NIHVA Make Automatic Retractable Flat Type Roof	9	31-08-20026
8	**Area:** CCA (PT) NIHVA Make - Automatic Retractable Roof Enclosure C shape *(effective collapsible roof 14.4m) + 2 nos Bi parting sliding doors	1	31-08-20026

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- Freight : Ex-works.
- Warranty : 36 Months from the date of supply.
- Payment Terms:
  - ✓ 40% Advance, Against Proforma Invoice.
  - ✓ 40% At the time of Dispatch, Against Proforma Invoice / Invoice.
  - ✓ 20 % After successful Installation & commissioning

Advance payment on total PO values and remaining payments shall be made item wise supply, erection and commissioning.

- PENALTY FOR DELAYS:
  - ✓ The SUPPLIER shall pay penalty for any delay in execution of SUPPLY at the rate of 0.5% (half percent) up to a maximum limit of 10% of the total contract value for every week of delay and prorata for any part thereof.
  - ✓ Total only 7 days grace period will be permitted.

Technical Specification for Automatic Retractable Roof with Polycarbonate Sheet

1. Scope

Design, manufacture, supply, installation, testing, and commissioning of Automatic Retractable Roof system suitable for ISO Class 8 Clean Room application.

2. General Requirements

1. Entire construction shall be air locked and leak-proof suitable for maintaining ISO Class 8 clean room conditions.
2. The retractable roof shall ensure smooth, vibration-free, and noiseless operation.
3. System shall be designed considering:
    - Wind load (Indore)
    - Dead load
    - Operational load
4. All materials used shall be corrosion resistant and suitable for industrial indoor applications.
5. Supplier shall submit GA drawing, load calculations and material specifications for approval before manufacturing.

3. Structural Frame

3.1 Main Structure

1. Main supporting structure shall be fabricated from:
    - IS 2062 Grade B MS sections
    - Aluminium sections of minimum grade 6063-T6
2. Minimum section thickness:
    - MS sections: 3 mm minimum
    - Aluminium sections: 3 mm minimum
3. Surface Treatment:
    - MS structure shall undergo:
        - Shot blasting
        - Zinc-rich epoxy primer
        - Powder coating minimum 70 microns thickness
    - Aluminium sections shall be powder coated/anodized.

3.2 Approved Makes

- Tata Steel
- Jindal Steel
- Hindalco Aluminium
- INDAL Aluminium

4. Roofing Material (Polycarbonate Sheet)

1. Roofing shall consist of:

- 3 mm (Minimum) thick solid polycarbonate sheet
- UV coated on both sides (If required)
- Light transmission: Minimum 80%
- Impact resistance: 200 times stronger than glass
- Temperature resistance: -20°C to +120°C

2. Sheet shall be:
   - Transparent/Clear finish unless otherwise specified
   - Fire retardant grade
   - Weather resistant

Approved Makes

- Lexan
- GE Plastics
- Danpal
- Gallina

5. Track System

1. Track shall be fabricated from heavy-duty MS sections.
2. Minimum track thickness:
   - 5 mm (Minimum) MS plate/channel equivalent.
3. Track shall be precision aligned for smooth operation.
4. Track surface shall be powder coated with anti-corrosion treatment.

Approved Makes

- Tata/Jindal material.

6. Interlocking Arrangement

1. Roof panels shall be provided with:
   - Mechanical interlocking
   - Overlap sealing arrangement
2. Interlocking joints shall prevent:
   - Air leakage
   - Water ingress
   - Dust penetration

7. Motorized Operating System

7.1 Motor

1. Motor shall be:
   - Single phase AC geared motor
   - TEFC (Totally Enclosed Fan Cooled)

- IP55 protection minimum
- Insulation Class F

2. Motor power rating shall be selected based on roof load and dimensions.

Approved Makes

- SEW-Eurodrive
- Bonfiglioli
- Rotomotive
- CG Power and Industrial Solutions

7.2 Gearbox

1. Heavy-duty worm/helical gearbox suitable for continuous operation.
2. Gearbox housing shall be cast iron/aluminium alloy.

Approved Makes

- SEW-Eurodrive
- Bonfiglioli
- Elecon

7.3 Drive Arrangement

1. Rack and Pinion arrangement shall be provided.
2. Rack shall be EN8/EN19 hardened steel.
3. Pinion shall be precision machined alloy steel.

Approved Makes

- Hiwin
- KK Engineering
- Custom precision machined

7.4 Control Panel

1. Control panel shall include:
    - MCB/MCCB
    - Contactor
    - Overload relay
    - SMPS/control transformer
    - Emergency stop
    - Manual/Auto selector
    - Indication lamps
2. Panel enclosure:

- Powder coated CRCA
- IP54 minimum protection

Approved Makes

- Schneider Electric
- Siemens
- L&T Electrical and Automation
- ABB

7.5 Remote Operation

1. Wireless RF remote operation shall be provided.
2. Operating range:
   - Minimum 15 meters.

Approved Makes

- Telecrane
- Autec
- Hetronic

8. Limit Switches

1. Mechanical limit switches shall be provided for fully open and fully closed positions.
2. IP65 protection minimum.

Approved Makes

- Honeywell
- Schneider Electric
- Omron

9. Bearings & Housing

1. Bearings shall be sealed and maintenance friendly.
2. Bearing selection shall be suitable for continuous-duty operation.

Approved Bearing Makes

- SKF
- FAG
- NTN

10. Gaskets & Sealants

1. EPDM rubber gaskets shall be UV resistant and weatherproof.
2. Hardness:
    - 60 ±5 Shore A
3. Sealants shall be neutral cure silicone/weather seal type.

Approved Makes

- Dow
- Pidilite
- Sika

11. Fasteners

1. All fasteners shall be:
    - Stainless Steel SS304 minimum
2. Fasteners exposed to atmosphere shall be corrosion resistant.

Approved Makes

- Unbrako
- TVS
- Atul Fasteners

12. Electricals & Wiring

1. All cables shall be FRLS grade copper cables.
2. Flexible trailing cable arrangement shall be provided wherever required.
3. Proper earthing arrangement shall be included.

Approved Makes

- Polycab
- KEI Industries
- Finolex

13. Installation & Commissioning

1. Complete installation, testing, and commissioning shall be in supplier scope.
2. Supplier shall ensure:
    - Proper alignment
    - Smooth movement
    - Leak-proof sealing
    - Functional testing

3. Trial run shall be conducted before handover.

14. Documentation

Supplier shall provide:

1. GA drawings
2. Electrical schematics
3. Material test certificates
4. O&M manual
5. Warranty certificate

15. Warranty

1. Complete system shall be warranted for minimum 36 months from commissioning against manufacturing defects.
2. Warranty shall include:
    - Mechanical components
    - Electrical components
    - Motor & gearbox
    - Structural defects
    - Leakage issues

GENERAL CONDITIONS OF PURCHASE ORDER

1) INTERPRETATIONS:

Buyer means **NEOTRAFO SOLUTIONS INDIA PRIVATE LIMITED** a company incorporated under the laws of India and having its principal place of business at **Regd. Office:** Corporate Office: B-23, 2nd Floor Phase-II, Technocrats Industrial Estate, Balanagar, Hyderabad – 500037, INDIA. **Factory: -** Plot No. S-120 to S-128 (P), S-131(P) E-City SEZ, Ranga Reddy District, Telangana-500001, INDIA.

Seller means person, firm, and company being the supplier/vendor assigned for this Purchase Order.

Product means the material or products for which the order is placed with the Seller.

Conditions means these general terms and conditions which will govern the supply of Products and Services.

Purchase Order means the order placed by the Buyer with the seller for the Purchase of Products and Services.

Contract means the contract for the supply of Products and Services concluded by placing a Purchase Order which is accepted by the Seller in Writing.

Services means any training, consultancy, hardware or software services or support and execution of field job provided by the Seller.

Any special conditions mentioned in the Purchase Order seller shall be read in conjunction with these Conditions and all other documents forming part of this Contract. Where any of these Conditions are repugnant to or at variance with any provisions of the special conditions, the special conditions relating to purchase shall be deemed to override the provisions of these Conditions and shall to the extent of such repugnancy or variance prevail over these Conditions.

The Seller shall acknowledge the receipt of the Purchase Order within three days following the mailing/Email of the Purchase Order and shall

confirm his acceptance of the Purchase Order in its entirely without exception. With Seller's acceptance of provisions of this Purchase Order he /it waives and considers as cancelled any of his/its own sales conditions. The Conditions of this Purchase Order constitute the entire agreement and a binding Contract between the Parties hereto. Changes, if any, will be binding only if the amendments are made.

2) DELIVERY TERMS:

A) Delivery Date: Time of Delivery as mentioned in the Purchase Order to be followed by the supplier.

B) Place of Delivery: The Products shall be delivered/ dispatched strictly as per the instructions in the Purchase Order. All materials against Purchase Order will be accepted only between working hours i.e., 10.00 am to 7.00 pm unless otherwise specified. The Products comprised in any Purchase Order are not to be delivered or invoices on installments unless the same is specified in the Purchase Order or with the Buyer written consent.

C) Delayed Delivery: The time and date of delivery as stipulated in the Purchase Order shall be deemed to be the essence of the Contract. In case of delay in execution of the Purchase Order beyond the date of delivery as stipulated in the Purchase Order or any extension sanctioned, the Buyer shall be at his option either

Accept delayed deliveries at price reduced by a sum/ percentage mentioned in the Purchase Order for every week of delay or part thereof.

Cancel the Purchase Order either in part or in full and purchase such cancelled quantities from elsewhere on account of and at the risk of the Seller without prejudice to its rights as mentioned above in respect of Products delivered.

D) Cancellation: In case of poor performance or delay in execution of work, **NEOTRAFO SOLUTIONS INDIA PRIVATE LIMITED** will have every right to withdraw a part or full and get the balance job done by other agency at your risk and cost and any claim whatsoever will not be entertained by **NEOTRAFO SOLUTIONS INDIA PRIVATE LIMITED**. This order is subject to any changes or cancellations which may be required to be made from our end due to any situation arising on account of Coronavirus spread or due to any other reasons beyond the Buyer's normal control.

E) Penalty Clause: If you fail to supply the ordered items in the stipulated time then same may be procured from other sources for which if any differential cost incurred by us, then same will be recovered from you.

F) Discrepancies: If any discrepancy found then you will do the same at your cost within specified time as per the order.

G) Delays due to Force Majeure: In the event of the causes of force majeure occurring within the agreed delivery terms, the delivery date can be extended by the Buyer on Receipt of Application from the Seller without imposition of Penalty. Only those causes which depend on the natural calamities, civil wars and national strikes.

H) Packing: Products supplied against this Purchase Order must be suitably and properly packed. It should be Eco-Friendly Type.

3) EXAMINATION OF PRODUCT:

Acceptance of Products supplied shall be subject to final approval by the Buyer. Specimen/ Machine proof should be submitted to Buyer and an approval thereto should be obtained in written before bulk production is undertaken in hand of all raw/packing materials.

Irrespective of the fact that the Products are delivered to the Buyer by the Seller as per the destination specified by the Buyer and shall be dispatched as per Buyer's instructions, by rail or by road or by air. The Acceptance of delivery of products shall always be subject to detailed inspection at the Buyer's site or such other destinations as specified in the Purchase Order for ascertaining whether the Products are in conformity with the contract or not and until then in no event the Buyer shall be deemed to have accepted such Products and upon any rejection of Products in question, the seller shall be deemed to have failed to deliver the concerned products in accordance with the contract. The above items are subject to inspection by NEOTRAFO engineers after which it will be accepted.

4) REJECTION/ REMOVAL OF REJECTED PRODUCTS AND REPLACEMENT:

The Buyer shall undertake the inspection of the Products within 30(thirty) days of the delivery of the Products. In the event the Products are rejected then within seven days from the receipt of the intimation from the buyer of his rejection to accept the products, the Seller shall remove at his own cost, risk, and expense the rejected Products from the Buyer's site or such other place wherever the products are stored. The Buyer should not be in any way responsible for or be held liable for any loss or deterioration of the rejected Products.

5) BILLS/ INVOICES:

Each Purchase Order must be invoiced separately by the Seller and the Purchase Order number should be clearly mentioned on the invoice. If this procedure is not followed resultant payment delay could occur for reconciliation of the Purchase Order. All bills/ invoices for supplies made bearing sales tax registration number of the Seller should be marked to the Accounts Department, Buyer, in triplicate duly endorsed with

Purchase Order Reference Number and date and be invariably accompanied by advice of dispatch, receipted copies of Delivery Challan, detailed packing list, Purchase Order copy and should also be accompanied by an appropriate certificate necessary under the Sales Tax Legislation. Such Bills/ invoices will be paid for by the Buyer as per the timelines mentioned in the Purchase Order or unless otherwise agreed and incorporated in the Purchase Order. Original GST Invoice is required along with materials. You have to mention your GST & PAN No.in your Invoice.

6) WARRANTY:

Seller expressly warrants that all Products and Services Ordered or Provided hereunder shall conform in all aspects to any specification, quality, drawings, samples, and other descriptions furnished to or by the Buyer and will be merchantable and free from defects, in material, design, quality and workmanship. If Buyer has furnished Performance requirements for the Products Purchased hereunder, Seller further warrants that such Products shall be fit and sufficient for the Purposes for which Buyer intends them. In addition to other remedies the Buyer may have, Buyer may reject Products not conforming to the foregoing warranties whether or not such products have been previously accepted by the Buyer, or any prior payments have been made thereon. Seller further Warrants that no law, rule, regulation, ordinance, Executive Order of India, a state or local Government or any other Governmental agency including without limitation all laws, rules, regulations, ordinance and orders relative to Price, Price Discrimination, ages, Safety and compensation have been violated in the manufacture or sale of Products or in the Performance of Services covered by the Purchase Order. Seller agrees that the foregoing warranties shall survive delivery of acceptance of, and payment for the Products OR THE Services provided hereunder and shall inure to the benefit of the Buyer and its customers.

7) CANCELLATION:

In case of poor performance or delay in execution of work, NEOTRAFO SOLUTIONS INDIA PRIVATE LIMITED will have every right to withdraw a part or full and get the balance job done by other agency at your risk and cost and any claim whatsoever will not be entertained by NEOTRAFO SOLUTIONS INDIA PRIVATE LIMITED. This order is subject to any changes or cancellations which may be required to be made from our end due to any situation arising on account of Coronavirus spread or due to any other reasons beyond the Buyer's normal control.

8) NO ASSIGNMENT:

This Purchase Order shall not be assigned to any other agency by the seller without obtaining prior written consent of the Buyer. The Seller represents and undertakes that they are lawful owners, having a valid title over the supplied Products against this Purchase Order and are legally entitled to transfer, sell, assign, or license the said products. The Seller represents that it has complied with all the statutory compliances

in respect of the manufacture, use, transportation, installation and transfer of the Products as per this Purchase Order. In case any further compliances are necessary for transfer, sale, transportation, installation or otherwise, the same shall be the Seller's responsibility and the Seller undertakes to comply the same.

9) NON-WAIVER:

Failure of the Buyer to insist upon compliance of any of the Conditions incorporated in the Purchase Order or failure or delay to exercise any rights or remedies herein or by law, or failure to properly notify Seller in the event of breach or the acceptance or payment of any Products hereunder or approval of design shall not release the Seller and shall not be deemed a waiver of any right of the Buyer to insist upon the strict performance thereof or of any of his or their rights or reminded as to any such Products regardless of when Products are dispatched received or accepted.

10) PRICE AND PAYMENT:

The Prices stated in the Sellers quotation for the Products should be based on Domestic/ International incoterms and should not have any value added or other tax duty or charge which may be imposed upon the production, storage, sale, transportation of the Products. Any such tax or charge shall be to the account of the Buyer. The Price quoted/ Purchase Order Price will remain applicable until delivery of products. The prices stated in the Seller's quotation for services exclude value added or other tax which may be imposed on the services. For Credit supplies Seller is not entitled to interest on any unpaid invoices. No Discounts will be sought for early payment. Payment date will be computed from the date of acceptance of Products or Service. Actual receipt only will be the determining factor in the scheduling of Payment of invoices. All tools, dies, patterns, Drawings or other equipment furnished or paid for by Buyer shall continue to be Buyer's property and subject to Buyer's disposition at any time; shall be held by Seller at its risk and replaced by Seller if lost, damaged, or destroyed and shall be used exclusively in the Preparation of Products ordered by the Buyer. No payments for Products or Printed packaging materials and blocks will be made unless the Blocks/ Design for the Particular jobs are returned to the Buyer in Good Condition.

11) CONFIDENTIALITY:

Except to the extent required for the purposes of performing its obligations under the Contract, the Seller Will not use and/ or make available at any time during or after the Purchase Order execution to any third party any information and know- how relating to the Business or affair of the Buyer which is disclosed or otherwise in its possession under or in respect to the Purchase Order, Including the Contract and the Subject Matter. Seller shall not, without obtaining our written consent, in any manner advertise, publish, communicate, or otherwise divulge the fact that the Seller has contracted to furnish the Product to the Buyer. Seller shall be responsible for matters within its control for the safeguarding of all information that is non-public, confidential, or proprietary in nature regarding Buyer and the use and or application of Buyer's products that is disclosed or developed in connection with the work under this contract. Buyer shall be entitled to equitable relief, including injunction and specific performance, in the event of any breach or threatened breach of this clause by the seller. Such remedies shall not be deemed to be exclusive remedies of Buyer but shall be in addition to all other remedies available at law or in equity.

12) DISPUTES AND JURISDICTION OF HYDERABAD COURTS:

This Contract shall be subject to the laws of India. All Disputes relating to Purchase Order or Conditions or relating to the Price of the Products supplied there under or otherwise arising there from between the seller and the Buyer shall be subject to and be referred to the Court of Competent Jurisdiction situated within the limits of Hyderabad, Telangana. Purchase order issued is subject to jurisdiction of Hyderabad, Telangana.

13) INSURANCE AND INDEMNITY:

Seller shall procure and maintain at all times adequate insurance against fire and other casualties covering all tools, patterns, fixtures, and material supplied by Buyer to Seller and Seller's insurance shall include a clause providing that loss, if any shall be payable to seller and Buyer personal property and shall be solely responsible, therefore, Seller will indemnify and will hold Buyer and Buyer's customers harmless from and against any and all claims, losses, damages, liabilities, fines, expenses, arising out of or in any way related to the Performance of the Purchase Order and the contract based thereon. Seller will take adequate measures to ensure compliance to all associated legal requirements. Seller shall try to prevent or mitigate any damage due to environmental pollution caused directly and indirectly by performance of this Purchase Order. In Such event, Supplier shall fully indemnify the Buyer against any third-party claims and penalties or fines that may arise there from. Seller agrees to indemnify and save harmless Buyer from and against all losses, liabilities, judgements, settlements, expenses including without limitation to attorney's fees or claims based on injuries or damages to any person or Property arising out of or in any way related to (a) the Purchase Order. (b) the breach of any obligation or warranty hereunder or (c) the delivery condition, use or operation of the Products or Services Purchased hereunder, whether such products are in equipment, machinery, or Products sold by Buyer to third-parties, and Seller agrees to and shall assume on behalf of Buyer, upon its demand (without regard to the real or apparent merit of the said action), the defense of any court or agency actions which may be brought against the Buyer.

INTELLECTUAL **PROPERTY RIGHTS**:

Seller warrants that the products specified herein and their sale or use alone or in combination according to the Seller's specification or recommendations, if any will not infringe any patent copyright or trademark. In case the Products constitute patent, copyright or trademark infringement and their use are enjoined, Buyer may at his sole option, pursue any remedy or remedies available at law or in equity, including without limitation, requiring Seller to Procure for Buyer the Right to continue using such Products, modify them so they become non-infringing, remove them and refund the total purchase price thereof. Seller, as part of consideration of the Purchase Order and without further costs to Buyer, hereby grants Buyer, an irrevocable, non- exclusive, royalty, right and license to use, sell, manufacture, and cause to be manufactured Products embodying any and all inventions and discoveries made, conceived or actually reduced to practice in connection with the Seller's performance of the Purchase Order, and Seller hereby grants to buyer a license to repair, rebuild, or relocated and to have repaired, rebuilt or relocated the Products purchased by Buyer under the Purchase Order.

14) LIMITATION OF BUYER'S LIABILITY:

In no event shall Buyer be liable for anticipated Profits or for incidental or consequential damages. Buyer's liability on any claim of any kind for any loss or damage arising out of connected with resulting from the Purchase Order or the Contract based thereon, or from the performance or break thereof, shall in no case exceed the price allocable to the Products or Services delivered hereunder must be commenced within one year after the cause of action has accrued.

15) COMPLIANCE:

Seller represents and warrants that Seller (a) shall not, directly or through any third party, give, promise or offer any Bribe, or request, agree to receive or accept any bribe, in connection with the Purchase Agreement or its dealings with Indorama. (b) Confirms that it is not a government official and is not affiliated with any such official. (c) Shall have in place adequate procedures to prevent those performing the Purchase agreement on Seller's behalf from committing bribery and (d) shall keep accurate and true records that are not misleading of all payments made under the Purchase Agreement or its dealing with Indorama. "Bribe" and "Bribery" shall mean any payment or transfer of value, or any other payment commonly held to be improper, and any act that would breach the US Foreign Corrupt Practices Act. The UK Bribery Act or any equivalent legislation of any OECD member state or other country shall be considered a bribe. "Purchasing Agreement" shall mean any and all purchasing contracts, agreements, purchase orders or any other Purchasing relationship no matter orally or in writing (collectively referred to as the Purchase. A Breach of this sub-clause (ii) by Seller shall entitle Indorama to terminate the Purchase Agreement immediately upon written notice and Supplier shall indemnify and keep Indorama indemnified against all actions, proceedings, costs, demands, and expenses arising from such a breach and termination.

16) SAFETY INSTRUCTIONS FOR VENDORS:

The Vendor / Supplier / Service Provider upon accepting the Purchase Order (PO), agrees and undertakes to abide by following Safety Instructions. Any deviation thereof shall amount to breach of the PO and shall invite penalty / rejection depending on the severity of the deviation.

17) MACHINERY SUPPLIERS:

All material shall be properly packed and labeled with necessary signage. Transport vehicle shall comply with Motor Vehicle Act, Carriage by Road Act and rules thereto.

Hazardous Chemical / effluents / hazardous waste transport vehicles shall carry first aid box, fire extinguisher, transport emergency (TREM) card, HAZCHEM code & hazardous goods transport license for driver including permits required in compliance with pollution control and other applicable statutes. Vendor/supplier shall ensure all materials are delivered without any damage to the container/s in which, they are packed. Materials should be properly secured during the transportation to prevent any tampering or mischief affecting the quality or quantity. All the chemicals shall be delivered along with Safety Data Sheet.

Gas Cylinders supplied are within the expiry period and shall be provided with Warning Signage, Labeling, Color Coding, valve caps, expiry pressure test Certificates and Certificate of Analysis. All gas cylinders shall be transported in vertical position and securely fastened. Vendor / Supplier / Service Provider to ensure to adhere to material handling instructions, storage conditions, instructions relating to manner of disposal in the event of any force majeure.

The Vendor / Supplier / Service Provider's obligation to mitigate any possible losses, without prejudice to NEOTRAFO's rights under the terms of the PO. Operating instructions and User manuals shall be provided with respective equipment/ machinery. Certificates, Calibration certificates, equipment drawings should be supplied along with respective equipment/machinery, wherever applicable.

Moving parts of the machinery shall be guarded as per IS 9474.

Vehicles with self-start problems, worn-out tyres, damaged silencer, damaged battery terminal, or other problems that imperil life and property shall not be deployed. As far as practicably possible, all packaging material shall be environment friendly and in compliance with applicable statutes.

17.1. Safety Instructions for Service Provider: Vendor, supplier, service provider, transporter, driver and any person entering on his behalf in NEOTRAFO premises should adhere to NEOTRAFO's Environment, Health & Safety (EHS) policies and procedures. All workmen including contract workmen shall undergo Safety Induction Training Program, as a pre-condition to work in NEOTRAFO premises. The Vendor / Supplier / Service Provider shall ensure that they follow safety precautions while rendering services to NEOTRAFO.

17.2. Health, Safety & Environment Management Program: The suppliers are requested to follow the requirement of ISO 14001 and ISO 45001 respectively as under;

- Supplier to comply with the Central Govt. rules for manufacture storage and import Hazardous chemicals and amendments rules Latest.
- Comply with the applicable motor - vehicle rules (1989) for transportation of Hazardous Chemicals, Oils and Industrial gases.
- To comply with the Gases cylinder rules latest, also suppliers shall mention in MSDS all the safely precautions to be taken while handling storage and use of chemicals supplied by them.

Sincerely,
For **NEOTRAFO SOLUTIONS INDIA PRIVATE LIMITED**

Authorised Signatory
Name: PS Ramesh Babu
Designation: CEO & Director